

IN THE CIRCUIT COURT OF _____ COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

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VS.

CAUSE NO. _____

DEFENDANT'S NAME

PETITIONER

Race and Gender: _____

DOB: _____

SSN: _____

Charge: _____

Offense Date: _____

Arrest Date: _____

Arresting Agency: _____

Agency Case No.: _____

Disposition Date: _____

Judgment of Court: Order of Dismissal

PETITION FOR DISMISSAL AND EXPUNGEMENT OF CRIMINAL RECORD

COMES NOW, PETITIONER _____ and petitions this Honorable Court to expunge the criminal record in the above-styled and numbered cause rendered against him in this Honorable Court; and, in support thereof would show the following, to wit:

1. That Petitioner, _____ an adult resident citizen of _____ (city), _____ (Washington, Sunflower, or Leflore) County, Mississippi, was charged and arrested on _____ on the following matter:

Charge: _____

Offense Date: _____

Arrest Date: _____

Arresting Agency: _____

Agency Case No.: _____

Disposition Date: _____

signature/date/initials zone

Judgment of Court: Order of Dismissal

2. That on (date) _____ the _____ (Washington, Sunflower, or Leflore) County Grand Jury indicted Petitioner on

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_____ of the indictment. See *Indictment*, filed and recorded on (date) _____, attached as **“Exhibit 1”**.

3. That on (date) _____, said charge against (name) _____ in the above styled and numbered cause was dismissed with prejudice. See *Order of Dismissal*, filed and recorded on (date) _____, attached as **Exhibit “2”**

4. That Petitioner files this *Petition for Dismissal and Expungement of Criminal Record* herein pursuant to Section 99-15-26 (5) and 99-19-71 (4) of the Mississippi Code of 1972, as annotated and amended, which states in relevant part:

Upon petition therefore, the court shall expunge the record of any case in which an arrest was made, the person arrested was released and the case was dismissed or the charges were dropped or there was no disposition of such case.

See Miss. Code Ann § 99-15-26 (5) and 99-19-71 (4) (emphasis added).

5. That Petitioner respectfully requests that his criminal record be expunged pursuant to Section 99-15-26(5) and 99-19-71 (4) of the Mississippi Code of 1972, as annotated and amended, as the above-referenced charge(s) has/have been “*dismissed or the charges were dropped*” in part.

WHEREFORE, PREMISES CONSIDERED, Petitioner (name) _____ respectfully requests that this Court will enter such order as necessary to expunge all records of hid criminal record in accordance with the relief prayed for hereinabove.

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Respectfully submitted, this the _____ of _____.

(name) _____

CERTIFICATE OF SERVICE

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I, (name) _____, defendant, hereby certify that I have this day delivered a true and correct copy of the above and foregoing *Petition for Dismissal and Expungement of Criminal Record* to the Office of the District Attorney, via U. S. Mail:

District Attorney's Office, Fourth District
P.O. Box 426
Greenville, MS 38701

This the _____ day of _____, 2020.

(name) _____

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